Montgomery County District Court

Cause No. 2024-CV-0006

Justin Anderson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	8-12-24
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

Subject to and without waiving the foregoing general denial, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence caused or contributed to the occurrence in question. Plaintiff failed to keep a proper lookout, failed to control speed, and failed to maintain an assured safe following distance, and under Chapter 33 of the Texas Civil Practice and Remedies Code any recovery must be reduced by Plaintiff's percentage of responsibility, and barred entirely if that percentage exceeds fifty percent.

Second, Plaintiff's alleged damages were caused, in whole or in part, by a pre-existing or unrelated condition, or by a subsequent intervening event, for which Defendant bears no responsibility.

Third, Plaintiff has failed to miitgate damages by failing to follow raesonable medical advice, by delaying necessary treatment, or by incurring charges that are not reasonable and necessary, and any recovery must be reduced accordingly.